Superior Court of the State of California
County of Orange

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

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https://occourtsapp.occourts.org/aci/checkin-results?dept=C20

Date: July 23, 2026

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1.	United Auto Credit Corporation v. All Credit Sales LLC 25-1529116	Before the court is an unopposed motion filed by attorneys at Adli Law Group, P.C. ("Attorneys"), requesting to be relieved as counsel of record for defendant Letrice H. Palmer aka Heath Palmer ("Client"). The motion is **GRANTED**. Attorneys have complied with the requirements of *California Rule of Court 3.1362*, and filed and served forms MC-051, MC-052, and MC-

		053 on Client and on the other parties in this action. The court finds Attorneys have provided a valid and sufficient reason for requesting to be relieved as counsel for Client. The motion is **GRANTED**. The court notes the order relieving counsel shall not be effective until Attorneys file proof of service of the ruling on Client. Until such time, Attorneys shall remain counsel of record. *Attorneys are ordered to give notice of this ruling*.
2.	Taghavi v. Khanaman 24-1436503	The motion by attorney Pasha Vafaei to be relieved as counsel for plaintiffs Azam Firouzfar and Hossein Taghavi is **DENIED**, for the reasons set forth herein. First, there is no mention of the date, time or location of the hearing in either the notice of motion or declaration. Second, there is no proof of service for the motion. Third, there is no proposed order. *Rule 3.1362(d)* requires that "the proposed order must be served on the client and on all other parties who have appeared in the case." Fourth, counsel's declaration regarding service is insufficient. *Rule 3.1362(d)(1)* requires that "If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either: (A) The service address is the current residence or business address of the client; or (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." Counsel states that he mailed notice to the clients at the last known address but that he has been "unable to confirm that the address is current or to locate a more current address for the client." (Declaration at Para. 3(b)(2).) However, counsel has failed to explain what "reasonable efforts" were made to determine the clients' addresses. The motion is therefore **DENIED**. *Attorney Pasha Vafaei is ordered to give notice of this ruling.*
3.	Capital One Bank (USA), N.A. v. Eckburg 17-922905	Before the Court is the unopposed Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement filed by Plaintiff Capital One Bank (USA), N.A. ("Plaintiff") against Defendant Caren Eckburg ("Defendant"). As more fully set forth below, the motion is **DENIED**. On 06/18/2026, the Court continued the hearing on the motion to 07/23/2026, and ordered Plaintiff to file and serve, no later than nine court days before the continued hearing date, a supplemental

		declaration showing that the Placentia address was Defendant's corrected address or otherwise establishing compliance with paragraph 9 of the Settlement Agreement. Plaintiff did not timely file the required supplemental declaration. Accordingly, the record does not establish compliance with paragraph 9 of the Settlement Agreement, and the motion is **DENIED**. *Plaintiff is ordered to give notice of this ruling.*
4.	Abawaji v. Andersen 25-1456264	The motion by plaintiff Abdulbasit Abawaji to set aside the dismissal entered on 1/30/26 is **DENIED**, without prejudice, as set forth herein. Plaintiff brings the instant motion pursuant to *Code of Civil Procedure §473(b)* which states in pertinent part as follows, "(b) The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. … Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." This action was initially set for a Case Management Conference (CMC) on 10/3/25. Plaintiff did not appear for the hearing and the Court scheduled an Order to Show Cause re: Why Sanctions in the Amount of $500.00 Should Not Be Imposed on Plaintiff or Counsel for Plaintiff for Failure to Appear and Violating *Rule 3.110* for 11/21/2025. The CMC was also continued to 11/21/25. On 11/21/25, plaintiff again failed to appear at the CMC and did not respond to the Order to Show Cause. The court therefore ordered sanctions against Sargon Law Group P.C., and or Abdulbasit Abawaji in the sum of $500.00, payable to Court by 12/22/2025. The Court also continued the CMC and set a further Order to Show Cause re: Why Additional Sanctions Should Not Be Imposed on Plaintiff and or Plaintiff's Counsel for Failure to Appear and Failure to Comply with *Rule 3.110* for 01/30/2026. On 1/30/26, plaintiff again failed to appear and did not respond to the OSC. Accordingly, the Court ordered the entire action dismissed without prejudice for Failure to Appear and Failure to Prosecute. In support of the instant motion, plaintiff submits the declaration of attorney Trevor Farrage. Mr. Farrage fails to explain why he failed to appear at the three hearings or why he did not respond to the OSC.

		Mr. Farrage also fails to explain the lack of compliance with *Rule 3.110* which requires that "the complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." While Mr. Farrage states that he "successfully completed service on September 19, 2025" (¶10), the two proofs of service attached to his declaration at Exhibit C are neither signed by the process server nor filed with the court. Accordingly, the motion is **DENIED**, without prejudice. *Plaintiff is ordered to give notice.*
5.	Lobas v. Martenson 26-1564421	Before the Court is a motion for preliminary injunction filed by plaintiff Andrew Lobas (Plaintiff) against defendants Peter Martenson and Justin Icardo (Defendants). Specifically, Plaintiff seeks a preliminary injunction 1) requiring Defendants to distribute 22.5% of any partnership distribution to Plaintiff and an additional 7.5% of any partnership distribution to an escrow account, concurrently with distributions to other partners; 2) alternatively, prohibiting Defendants from distributing to themselves any portion of Plaintiff's claimed entitlement to 30% partnership distribution; and 3) prohibiting Defendants from limiting Plaintiff's day-to-day access to any partnership systems, platforms, programs, or other partnership documents. For the reasons set forth below, the motion is **GRANTED**, in part, prohibiting Defendants from distributing to themselves any portion of Plaintiff's claimed entitlement to 22.5% of partnership distributions; Plaintiff shall post a nominal bond in the amount of $ 15,000 within 30 days. The motion is otherwise **DENIED**. Defendant's evidentiary objections are **OVERRULED**. Plaintiff's evidentiary objections are **OVERRULED**. In determining whether to grant a preliminary injunction, the court evaluates two interrelated factors: the likelihood that the plaintiff will prevail on the merits at trial, and the interim harm that the plaintiff is likely to sustain if the injunction were denied as compared to the harm that the defendant is likely to suffer if the preliminary injunction were issued. (*Nutro Products, Inc. v. Cole Grain Co.* (1992) 3 Cal.App.4th 860, 865; *Tahoe Keys Property Owners' Assn. v. State Water Resources Control Bd.* (1994) 29 Cal.App. 4th 1459, 1470-1471.) <u>Probability of Success</u>: Plaintiff's claims all arise out of his claimed entitlement to 30% ownership and profit distributions of the partnership business pursuant to the parties' alleged oral agreement, which Plaintiff claims Defendants breached by unilaterally reducing his share to 22.5% and pushing him out of the business. (Compl. ¶¶ 10 - 51, 57, 61, 66, 76, 85.) The elements of a breach of contract claim are: (1) existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3)

defendant's breach; and (4) resulting damage to plaintiff. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

The preponderance of the evidence shows the parties agreed to terms memorialized in the Group Aviara Partners, LLC Structuring Discussion Terms, circulated in August 2024 ("Term Sheet"). (Labos Decl. ¶¶ 4-5, Ex. 1; Martenson Decl., ¶¶ 5-7, Ex. A; Icardo Decl. ¶¶ 3-4.) When the parties agree on all of the essential terms of an agreement in a writing, there is a contract even though the parties intend that a formal writing will be executed later. (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 306-309.) Consent to an agreement may be manifested by acts or conduct and need not necessarily be shown by a writing or express words. (*Kritzer v. Citron* (1950) 101 Cal.App.2d 33, 39.) Furthermore, performance of the conditions of a proposal, or the acceptance of the consideration offered with a proposal, is an acceptance of the proposal. (*Civ. Code § 1584; Estate of Klauenberg* (1973) 32 Cal.App.3d 1067, 1070.) Here, the evidence shows the parties consented to the Term Sheet by conducting themselves according to the terms therein, including Martenson acting as the "managing partner" and the partnership making decisions consistent with the voting rights. (Martenson Decl. ¶ 21, Ex. B, Lobas Decl. ¶¶ 24, 26; Icardo Decl. ¶¶ 2-3, 15.)

While Plaintiff's performance issues are heavily disputed, Plaintiff has not shown Defendants breached the Term Sheet because the undisputed evidence shows Plaintiff's profit interest was reduced to 22.5% by majority consent, and arguably by unanimous consent based on Plaintiff's acceptance of the reduced distributions for 8 months. (Martenson Decl., ¶21, Ex. A at ¶¶ 1(i), 2(a); Lobas Decl. ¶¶ 24, 29; Icardo Decl. ¶ 15; Civ. Code § 1584.) Plaintiff has not shown reasonable probability of success that he is entitled to 30% ownership and profit distributions. At most, Plaintiff has shown entitlement to 22.5%.

<u>Interim Harm</u>: It is undisputed Defendants passed a corporate resolution on May 7, 2026, reducing Plaintiff's share to 1% and limiting Plaintiff access to the partnership's internal systems, platforms, programs, etc., which Defendants claim was necessary to protect the partnership's proprietary information. Plaintiff contends irreparable harm because Defendants are "stealing" his profit distributions, stifling his ability to make a living, and the lack of access to partnership materials will damage his business reputation.

Due to litigation between the parties, and both parties' desire to terminate the partnership (*i.e.*, both parties seek dissolution), Plaintiff's continued participation in the partnership, including access to partnership documents, is not practical pending resolution of this action. Defendants' reduction of Plaintiff's partnership interest to 1% without unanimous consent violates the Term Sheet; however, Defendants' promise to set aside Plaintiff's claimed partnership interest of 22.5% might negate potential harm. As far as Plaintiff's ability to make a living, Plaintiff has not adequately explained why he cannot seek other employment during the pendency of this action. Plaintiff

		also concedes "Defendants have only partially cut off [his] access" to partnership materials. (Lobas Decl. ¶ 51.) There is no evidence Plaintiff's limited access has impeded his ability to manage his ongoing deals. The Court finds that Plaintiff's request for a mandatory injunction requiring Defendants to distribute profits of 30% to Plaintiff is unwarranted. The Court also finds Plaintiff has not shown irreparable harm in restricted access to partnership materials. However, the Court finds the balancing of harms weighs in favor of granting a preliminary injunction prohibiting Defendants from distributing 22.5% of Plaintiff's claimed partnership profits to themselves. The motion is therefore **GRANTED**, in part, and **DENIED**, in part, accordingly. Bond: If a preliminary injunction is granted, the court must require an undertaking. (Code of Civil Procedure section 995.710.) The amount of the bond is to cover any damage to the defendant caused by issuance of the injunction, if it is finally determined that plaintiff was not entitled to the injunction. (Code of Civ. Proc. § 529.) Defendants' demand for a $500,000 bond is arbitrary and not supported by any evidentiary showing of Defendants' likely damages. (Oiye v. Fox (2012) 211 Cal.App.4th 1036, 1062 [nominal bond of $1,000 appropriate in the absence of evidentiary showing of enjoined parties' probable damages].) Plaintiff agrees to a $15,000 bond, which the Court finds is appropriate. Counsel for Plaintiff shall give notice of this ruling.
6.	George v. Brothers International Desserts 25-15147683	Defendant Brothers International Desserts' Motion to Compel Arbitration is **DENIED**. In order for an arbitration agreement to be enforceable, each party must agree to it. [Federal Arbitration Act, *9 U.S.C.A. §2*] In Opposition to the Motion, plaintiff George says there was no agreement because the electronic documents, including his signature, do not establish it. After a careful review of all evidence and argument submitted by the parties, the Court concludes that that defendant's motion fails for one, unexplained reason. Defendants identify two different email addresses for transactions concerning the agreement without saying why. The Motion says alonzogeorge@brothersdesserts.com. The Reply says alonzog51@gmail.com. This unexplained discrepancy does not allow the Court to conclude an agreement hadbeen shown. All objections are **OVERRULED**. All testimony has been considered. *Moving party shall give notice.*
7.	Phillips v. LMC Costa Mesa Holdings, LP	The Demurrer filed on 5/8/26 by City of Costa Mesa, sued as Costa Mesa Police Department ("City"), is **SUSTAINED** with 15 days leave to amend. The Court construes the Demurrer as directed to the First Amended Complaint (incorrectly titled as a "Motion To Amend Complaint For Negligence and Property Damages") filed by Plaintiff Daniel Nicole Phillips ("Plaintiff") on 1/7/25 (the "FAC").

		The FAC fails to state a cognizable claim against City and is uncertain. It fails to specify, for each cause of action, which is directed to which defendant(s), and what facts support the claim as to each defendant. Nor does the FAC articulate any cogent claim as to City. To state a cause of action against a public entity, every fact essential to the existence of statutory liability must be pleaded with particularity. (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802.) Plaintiff has failed to meet those requirements in her FAC. In addition, the FAC fails to state facts demonstrating compliance with the Tort Claims Act, which requires that any civil complaint against a public entity for money or damages first be timely presented to and rejected by the pertinent public entity. (*Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1776.) Each theory of recovery against the public entity must have been reflected in a timely claim, and the factual circumstances set forth in the claim must correspond with those alleged in the complaint. (*Id*.) Failure to allege facts demonstrating or excusing compliance with the claim presentation requirement subjects a claim against a public entity to a demurrer for failure to state a cause of action. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.) Here, the FAC does not attempt to assert compliance with these requirements. City's demurrer is therefore **SUSTAINED**, as to the entire FAC, with 15 days leave to amend. *Counsel for City is to give notice of this ruling.*
8.	Talbot v. Talbot 26-1547132	**A) Demurrer** Defendants Gail C. Talbot and Matthew Talbot's ("Defendants" together) unopposed demurrer is **OVERRULED**. There are numerous issues with this pleading. It is titled as a demurrer yet there is no actual separate demurrer as required under *California Rules of Court, Rule 3.1320*. The pleading also appears to improperly request the court strike various damages from plaintiffs Lauren Talbot and Paul Hopkins Talbot, III's ("Plaintiffs" together) First Amended Complaint ("FAC") in the body of the pleading. All of these damages were not identified in the notice of the pleading, even if the pleading itself is improper. The function of a demurrer is to test the legal sufficiency of a cause of action, and not to strike damages. (*Civ. Proc. Code § 430.10; Venice Town Council, Inc. v. City of Los Angeles* (1996) 47 Cal. App. 4th 1547, 1562.) Defendants have not alleged any proper basis for a demurrer. It is also unclear if Defendants are demurring to the original complaint or the FAC as the pleading repeatedly refers to "Complaint, Prayer ¶ 5, p. 6." The FAC, which was served 21-days prior to this motion being filed (ROA 17), does not have any prayer on page 6. The original complaint, which is not the operative pleading in this matter, does contain a prayer on page 6.

As Defendants have not properly pled any grounds for a demurrer or an issue with the FAC which can be demurred to, and as the pleading itself appears to have issue with the original complaint instead of the operative FAC, the demurrer is **OVERRULED**

B) Motion to Strike

Defendants' unopposed motion to strike is **GRANTED**.

The court first notes that Defendants only identified "Complaint, Prayer ¶ 5, p. 6" to be struck in their notice of motion. Again, as noted in the ruling on the demurrer, there is no prayer on page 6 of the FAC. To the extent Defendants request the court strike Prayer ¶ 5 from page 7, the sum identified in the prayer is for $1,250,000, and not the $1,450,000 identified in the notice of motion and in the motion itself. However, the court notes elsewhere in the FAC the sum of $1,450,000 was identified as the amount Plaintiffs were allegedly harmed without an explanation of the difference. (FAC ¶¶ 18, 25.)

Defendants request the court strike the monetary damage request under the cause of action for declaratory relief as it is barred by the statute of limitations. The FAC alleges that after accepting the funds for the purported buy-out of the Property, Gail refused to transfer her interest in the home to Paul unless Paul gave Matthew a 50% share, which Paul did. (FAC ¶¶ 9-10, Ex. B.) The grant deed assigning Matthew interest was signed by Paul and Gail on or about 01/08/20 and filed on or about 03/11/20. (FAC ¶ 14, Exs. B and D.) "Under duress and based on the extortion by defendants," Paul was required to sign the deed. The statute of limitations began to run on 03/11/20. The statute of limitations is three years based on fraud and duress. (*Civ. Proc. Code § 338(d)*.) The limitations period would have run by 03/11/23. The complaint was filed on 02/13/26, which was over 35 months after the limitations period ended.

While the FAC states that up to 11/20/24, Paul believed that if he requested Matthew would transfer his half of the Property back to Paul, however at that time Gail allegedly filed an unspecified action to obtain the balance of the Property. (FAC ¶ 16.) There are no allegations as to why Paul believed Matthew would transfer the Property back to Paul, nor are there any tolling allegations. As Paul was aware of the fraudulent actions when they occurred, it appears from the face of the FAC that the cause of action for declaratory relief based upon the fraud and duress is barred.

Although a court can award monetary relief in a declaratory relief action under appropriate circumstances, where such appropriate circumstances do not exist because there is no actual controversy. (*Cnty. of San Diego v. State of California* (2008) 164 Cal. App. 4th 580, 608.) As the declaratory relief claim as pled is barred by the statute of limitations, there is no actual controversy between the parties.

		The motion is granted as to the prayer for monetary damages on cause of action number two. (*Civ. Proc. Code § 436*.) Defendants also request the court strike the prayer for punitive damages. Punitive damages are only available if a plaintiff pleads sufficient facts under one of the three prongs of *Civ. Code § 3294*. The only prong Plaintiffs attempted to allege is the fraud prong. (FAC ¶¶ 7, 16, 22, 31, Prayer No. 2.) "Fraud must be pleaded with specificity rather than with " 'general and conclusory allegations.' " [Citation.] The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made. . . [Citation.]" (*West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal. App. 4th 780, 793.) While Plaintiffs might allege facts which support extortion Plaintiffs' do not allege sufficient facts which support fraud in that action. The motion is granted as to punitive damages. (*Civ. Proc. Code § 436.*) Plaintiffs are given leave to file an amended complaint within 15 days of written notice of the ruling. *Defendants to give notice.*
9.	Trujillo v, Hyundai Motor America 25-1511691	*(Moot)*
10.	Baluch Brothers Development LLC v. Pukini 23-1346229	The motion by Ryan Young as individual and in capacity as Trustee of the Young Family Trust and the Young Ryan Trust for an order granting judgment on the pleadings is **DENIED**. There is no proof of service showing the motion was served on the plaintiffs. *Cal. Rules of Court, rule 3.1300(c)* requires a proof of service to be filed at least five court days prior to the hearing. Accordingly, the motion is **DENIED**. *Mr. Young is ordered to give notice.*
11.	Hasan v. Hasan 24-1408848	Before the Court is a motion to disqualify Plaintiffs' counsel Fred Padres (Padres) filed by defendants Malik Hasan and Seeme Hasan (Defendants). For the reasons set below, the motion is **DENIED.** Plaintiffs' request for sanctions is also **DENIED**. Defendants' original request for judicial notice is **DENIED** as irrelevant and Defendants' request for judicial notice submitted for the first time with the reply is **DENIED** as untimely. The court has inherent power "to control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every manner pertaining thereto." (Code Civ. Proc. § 128, subd.(a)(5).) This includes the power to disqualify counsel in appropriate cases. (*In re Complex*

Asbestos Litig. (1991) 232 Cal. App. 3d 572, 585.) Deciding a motion to disqualify requires the court to weigh the following variables, including: 1) the party's right to counsel of choice; 2) the attorney's interest in representing a client; 3) the financial burden on a client of changing counsel; 4) any tactical abuse underlying a disqualification motion; and 5) the principle that the fair resolution of disputes requires vigorous representation of parties by independent counsel. (*Mills Land & Water Co. v. Golden West Refining Co.* (1986) 186 Cal.App.3d 116, 126.) "The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar." (*People ex rel. Dep't of Corps. v. SpeeDee Oil Change Sys., Inc.* (1999) 20 Cal.4th 1135, 1145-1146.)

An attorney's misuse of inadvertently disclosed privileged or confidential information may warrant disqualification. (See, *e.g,. Rico v. Mitsubishi Motors Corp.* (2007) 42 Cal.4th 807, 819-820; *McDermont Will & Emery LLP v. Superior Court* (2017) 10 Cal.App.5th 1083, 1092; *DCH Health Services Corp. v. Waite* (2002) 95 Cal.App.4th 829, 832.) The so-called "State Fund rule" governs an attorney's duties upon receiving materials that appear to be privileged and/or confidential:

When a lawyer who receives materials that obviously appear to be subject to an attorney-client privilege or otherwise clearly appear to be confidential and privileged and where it is reasonably apparent that the materials were provided or made available through inadvertence, the lawyer receiving such materials should refrain from examining the materials any more than is essential to ascertain if the materials are privileged, and shall immediately notify the sender that he or she possesses material that appears to be privileged.

(*State Compensation Ins. Fund v. WPS, Inc.* (1999) 70 Cal.App.4th 644, 656–657 ("*State Fund*"); see also Cal. Rules Prof. Conduct, rule 4.4 [codifying the *State Fund* rule].) "The *State Fund* rule is an objective standard. In applying the rule, courts must consider whether reasonably competent counsel, knowing the circumstances of the litigation, would have concluded the materials were privileged, how much review was reasonably necessary to draw that conclusion, and when counsel's examination should have ended. [Citation.]" (*Rico v. Mitsubishi Motors, supra,* 42 Cal.4th at p. 818.)

Here, there is insufficient evidence Padres obtained any information that "obviously appear to be subject to an attorney-client privilege or otherwise clearly appear to be confidential and privileged" or that he violated any ethical duties. Defendants merely speculate that Padres obtained work product information, but there is no proof he actually did. What little evidence there is certainly does not warrant disqualification. The motion is therefore **DENIED**.

Plaintiffs seek sanctions pursuant to *Code of Civil Procedure section 128.7.* However, Plaintiff failed to comply with the procedural requirements, including the filing of a separate motion and compliance

		with the 21-day "safe harbor" rule. (*Code of Civ. Proc. § 128.7, subd. (c)(1)*.) Plaintiffs' request for sanctions is therefore **DENIED**. *Counsel for Plaintiffs shall provide notice of this ruling.*
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